

On 1 December 2021, the Agricultural and Veterinary Chemicals Legislation Amendment (Australian Pesticides and Veterinary Medicines Authority Board and Other Improvements) Bill 2019 was passed by the Australian Parliament. It became law on 7 December 2021, when it received royal assent.

Information about the Bill, including consideration by the Senate Standing Committee for the Scrutiny of Bills and inquiry by the Senate Rural and Regional Affairs and Transport Legislation Committee, is available from the [Australian Parliament website](#). The government responded to the Senate Rural and Regional Affairs and Transport Legislation Committee's recommendations on 13 March 2020.

The legislative changes:

- provide more flexibility to deal with new information provided when the Australian Pesticides and Veterinary Medicines Authority (APVMA) is considering an application
- enable the use of simpler regulatory processes for chemicals of low regulatory concern
- provide incentives for companies to register certain new uses of chemical products
- simplify the reporting requirements for annual returns
- support computerised decision-making by the APVMA
- increase the flexibility to manage errors in an application at the preliminary assessment stage
- enable the APVMA to grant part of a variation application
- enable a person to apply to vary an approval or registration that is suspended, to address the reason for the suspension
- establish civil penalties relating to providing false or misleading information to the APVMA
- provide for suspension or cancellation where false or misleading information is provided in an application for a variation or label approval
- improve the transparency of voluntary recalls
- harmonise requirements to ensure that all applicants and holders of registrations and approvals must inform the APVMA if they become aware that a product, active constituent or label may not meet the legislated criteria
- simplify the APVMA's corporate reporting requirements
- provide a more practical mechanism for dealing with minor variations in a product
- clarify what information must be included on a label
- fix anomalies in the regulation-making powers for the labelling criteria
- allow the APVMA and Food Standards Australia New Zealand to agree on appropriate timeframes for notifications from the APVMA about potential new maximum residue limits
- amend the definition of expiry date in the Agvet Code to mean the date after which a chemical product 'must not' be used
- make minor and machinery changes including removal of unnecessary and redundant provisions and other changes to realise operational efficiencies, reduce unnecessary regulation and clarify ambiguities.

The Act also establishes a governance board for the APVMA and ceases the existing APVMA Advisory Board. Establishing an APVMA board will strengthen the APVMA's governance arrangements and provide the necessary oversight to help the regulator manage operational, financial and performance

matters. The board will replace the Chief Executive Officer as the accountable authority under the Public Governance, Performance and Accountability Act 2013 (PGPA Act). It will ensure the proper, efficient and effective performance of the APVMA's functions; and determine the policies, objectives and strategies that the APVMA must follow.

Background

The Agricultural and Veterinary Chemicals Legislation Amendment (Australian Pesticides and Veterinary Medicines Authority Board and Other Improvements) Bill 2019 progresses measures that were in two Bills that lapsed when parliament was dissolved in early 2019:

- The Agricultural and Veterinary Chemicals Legislation Amendment ([Operational Efficiency](#)) Bill 2017, which was introduced into the Australian Parliament on 25 October 2017 with a subsequent government amendment to introduce a governance board for the APVMA.
- The Agricultural and Veterinary Chemicals Legislation Amendment ([Streamlining Regulation](#)) Bill 2018, which was introduced into the Australian Parliament on 18 October 2018.

There was extensive public consultation on the measures through the development of these earlier Bills.

Two measures from the lapsed Bills were not revived:

- Providing for the APVMA to establish a third-party accredited assessor scheme.
- Aligning the timing of two reviews (one of which—the [review of the Agricultural and Veterinary Chemicals Legislation Amendment Act 2013](#)—has since completed).

Source: <https://www.agriculture.gov.au/agriculture-land/farm-food-drought/ag-vet-chemicals/better-regulation-of-ag-vet-chemicals/streamlining/apvma-board-bill-2019>